

Legal Studies booklet of materials

300 level (Advanced)

LGS3010: PROPERTY LAW

LGS3020: DISPUTE RESOLUTION

LGS3040: NEGLIGENCE

LGS3060: CONTROVERSY & CHANGE

LGS3070: LANDMARK DECISIONS

LGS3080: CRIMINAL LAW

LGS3910: LGS PROJECT D

Course Description

This course provides students with a comprehensive understanding of key areas of Canadian law, emphasizing both theoretical knowledge and practical application. Students will explore property law, dispute resolution, negligence, controversial legal issues, landmark court decisions, and criminal law. Through case studies, simulations, and research projects, students will develop critical thinking, problem-solving, and legal analysis skills while understanding the impact of law on individuals and society. This course prepares students for informed citizenship, post-secondary studies in law, and careers in justice-related fields.

Course Objectives

- Differentiate between various areas of Canadian law and their applications.
- Analyze legal disputes and propose appropriate resolution strategies.
- Examine negligence and legal responsibilities within personal and societal contexts.
- Evaluate controversial legal issues and appreciate multiple perspectives.
- Investigate landmark court decisions and their influence on Canadian law and society.
- Understand the structure and principles of the Canadian criminal justice system.
- Apply critical thinking and problem-solving skills to legal scenarios.
- Conduct research, present findings, and articulate legal arguments in multiple formats.

Units of Study

Property Law (LGS3010)

- Definition and types of property: real, personal, intellectual
- Legal rights, ownership, and transfer of property
- Case studies involving property disputes

Dispute Resolution (LGS3020)

- Traditional vs. alternative dispute resolution methods
- Mediation, negotiation, and arbitration processes
- Benefits and challenges of different dispute resolution methods

Negligence (LGS3040)

- Definition and evolution of negligence law
- Duty of care, breach, causation, and damages

- Case studies illustrating negligence in Canadian law

Controversy & Change (LGS3060)

- Understanding controversial issues with legal implications
- Analysis of differing viewpoints and societal impact
- Strategies for respectful debate and legal argumentation

Landmark Decisions (LGS3070)

- Definition and role of precedent in Canadian law
- Review of major Canadian landmark decisions
- Impacts of judicial decisions on society, law, and policy

Criminal Law (LGS3080)

- Overview of the Canadian criminal justice system
- Classification of offences: summary, indictable, hybrid
- Elements of criminal responsibility and defences
- Case studies of significant criminal law cases

Instructions

This material has been created to enable you to engage in self-study of Legal Studies. Please follow the steps as identified in this booklet and address any questions to your instructor. Next Step students are required to check in with their instructor(s) weekly. It is recommended that multiple check ins occur each week to ensure successful completion of academic course work. Students not adhering to the weekly check in schedule or failing to engage in the learning process will be removed from their course.

Instructor

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Assessment

- **Formative Assessments:** Integrated into each unit; includes case analyses, scenario exercises, position papers, and research assignments.
- **Summative Assessment:** Comprehensive legal project incorporating elements from all six modules, demonstrating critical understanding and applied skills. Flexible submission options totaling 100 marks.

Students will be assessed through a combination of assignments, research activities, project work, presentations, observations, and focused conversations. Module work may be modified at the discretion of the instructor and after conversation with the student.

Each module is valued and graded out of 100 total marks, based on the key learner outcomes. Additionally, each module is weighted at 100% in the category weights as assignments category. Select elements of module work may be presented orally as approved by the instructor.

Our Next Step vision is to create a community of learners who embody the virtues of acceptance, flexibility, individualization, respect, and responsibility.

COURSE LGS3010: PROPERTY LAW

Description: Students identify laws relating to real, personal and intellectual properties and investigate the processes of buying and selling real property and the legal implications associated with Internet transactions.

Property refers to legally recognized rights to possess, use, enjoy, and dispose of something. In law, property is not the object itself, but the bundle of rights attached to it.

Real, Personal, and Intellectual Property. In Canadian law, property refers to legally recognized rights to own, use, control, and transfer something. Property is commonly classified into real property, personal property, and intellectual property.

Real Property (Real Estate): Includes land and anything permanently attached to the land. Ownership of real property is registered and governed by provincial legislation.

- Characteristics: Immovable, Fixed to the land, Often high in value, Ownership is recorded on land title
- Examples: Land and lots, Houses and apartment buildings, Farms and commercial buildings, Fixtures such as built-in cabinets or plumbing, Mineral rights (unless separated from the surface title)
- Relevant Alberta Legislation: *Law of Property Act, Land Titles Act*

Personal Property (Chattels): Refers to movable items that are not permanently attached to land. These items can be bought, sold, leased, or used as security for loans.

- Characteristics: Movable, Tangible, Ownership does not require land registration
- Examples: Vehicles, Furniture and appliances, Electronics and tools, Clothing and jewelry, Money and investments
- Relevant Legislation: *Sale of Goods Act, Personal Property Security Act (PPSA)*

Intellectual Property: Protects creations of the mind rather than physical objects. These rights allow creators to control how their work is used and to benefit financially from it.

- Characteristics: Intangible, Time-limited protection, Governed primarily by federal law
- Examples: Copyright: books, music, films, digital content, Trademarks: logos, brand names, slogans, Patents: inventions and technological processes, Software and apps
- Relevant Federal Legislation: *Copyright Act, Patent Act, Trademarks Act*

Historical Definition of Property. The legal definition of property in Canada has evolved significantly over time. Early property law focused almost entirely on land ownership, while modern law recognizes a wide range of tangible and intangible property rights. These changes reflect social, economic, and technological developments.

Early Property Law: Land-Based Ownership

Feudal and British Roots: Canadian property law is largely based on English common law, which developed under a feudal system. Property was viewed as physical landownership, and legal protection focused on real property rather than personal possessions. Under this system:

- All land was technically owned by the Crown

- Individuals held land through grants or tenures
- Property rights were tied primarily to land, not movable goods

Expansion to Personal Property: As trade and commerce expanded in the 18th and 19th centuries:

- Personal property (goods and chattels) became increasingly valuable
- The law began recognizing ownership and transfer of movable items

Legislation such as the Sale of Goods Act helped formalize:

- Ownership of personal property
- Rights and responsibilities in buying and selling goods
- Legal remedies when goods were defective or contracts were breached

This marked a shift from land-based wealth to commercial and consumer-based property.

Recognition of Intangible Property

Intellectual Property Development: With industrialization and technological advancement, the law expanded to protect non-physical property:

- Creative works, Inventions, Brand identity

Federal legislation introduced legal protections such as:

- Copyright, Patents, Trademarks

This change reflected the understanding that ideas and creations have economic value, even without physical form.

Indigenous Perspectives and Legal Recognition: Historically, Canadian law:

- Ignored or displaced Indigenous systems of land ownership
- Treated Indigenous land as Crown land

Over time, the legal definition of property expanded to recognize:

- Aboriginal title, Treaty rights, Traditional land use

Section 35 of the Constitution Act, 1982 affirmed existing Aboriginal and treaty rights, significantly altering how property is legally understood in Canada.

Modern Developments: Digital and Electronic Property: In the modern era, property law continues to evolve with technology:

- Digital assets, Electronic contracts, Online intellectual property, Software licences

While these forms may not be owned in the traditional sense, the law recognizes rights of access, use, and control, expanding the definition of property beyond physical ownership.

Changes in Who Could Own Property. Historically, the right to own property in Canada was limited to a narrow group of people, primarily male British subjects, and was influenced by English common law and colonial policies. Married women were generally prohibited from owning property independently, as their property was legally controlled by their husbands under the doctrine of coverture.

Indigenous peoples were largely excluded from property ownership under Canadian law, as their lands were claimed by the Crown and governed through treaties and legislation such as the *Indian Act*. Enslaved persons and many racialized immigrants also faced legal and practical barriers to ownership.

Over time, reforms such as the Married Women's Property Acts, the abolition of slavery, human rights legislation, and the constitutional recognition of Indigenous rights in Section 35 of the *Constitution Act, 1982* expanded property ownership rights. As a result, modern Canadian law recognizes the right of individuals, regardless of gender, race, or marital status, to own and control property, reflecting broader social and legal commitments to equality and inclusion.

Rights of a Property Owner

In Canadian law, property ownership is often described as a “bundle of rights.” Ownership does not mean unlimited control; instead, it includes several legally recognized rights that may be shared, restricted, or regulated by law.

- 1. Right to Possess and Use Property:** An owner has the right to possess and use their property in a lawful manner. This includes living in a home, operating a business, or using land for permitted purposes. This right is limited by zoning bylaws, environmental regulations, and other laws.
- 2. Right to Quiet Enjoyment:** Quiet enjoyment means the owner has the right to use and enjoy their property without unreasonable interference from others. This right protects owners from trespass, nuisance, or unlawful disturbance, but it does not prevent lawful government regulation or the rights of others.
- 3. Right to Sell or Transfer Property:** An owner generally has the right to sell, gift, or transfer property to another person. For real property, this transfer must comply with formal legal requirements, including written agreements and registration under the *Land Titles Act*.
- 4. Right to Lease Property:** An owner may lease property to another person, granting exclusive possession for a fixed period in exchange for rent. While ownership remains with the landlord, certain rights and responsibilities transfer to the tenant under legislation such as the *Residential Tenancies Act*.
- 5. Right to Grant Rights to Third Parties:** Owners may grant limited rights to others, such as: Easements or rights of way, Licences to use property, Utility access. These rights reduce exclusive control but allow shared or limited use.
- 6. Right to Mortgage Property:** An owner may use property as security for a loan by granting a mortgage or other registered interest. The lender gains certain rights, such as the power of sale, if the borrower defaults.

7. **Water Rights:** Property owners may have limited rights to use water adjacent to or on their land, subject to provincial regulation. In Alberta, water use is strictly controlled through licensing and does not give absolute ownership of water resources.
8. **Air Space Rights:** Owners have rights to the air space above their land, but only to a reasonable height. These rights are limited by aviation laws, municipal bylaws, and public interests.
9. **Mineral Rights:** Ownership may include mineral rights beneath the land, such as oil, gas, or minerals. In many cases in Alberta, mineral rights are owned by the Crown and may be separated from surface ownership.

While property owners in Canada enjoy broad rights, those rights are not absolute. Ownership consists of a bundle of legally defined rights that can be limited by legislation, shared with others, or transferred to third parties.

Other Property Interests

Not all legal interests in property involve full ownership. Canadian law recognizes several limited or shared property interests that grant specific rights or responsibilities without transferring complete ownership. These interests help regulate how property is used, controlled, or secured.

Lease: A lease is a legal agreement that grants a person (the tenant or lessee) exclusive possession of property for a fixed period in exchange for payment (rent).

- Ownership remains with the landlord (lessor)
- Tenant gains exclusive use during the lease term
- Creates legal rights and obligations for both parties

Examples: Apartment rental, Vehicle lease

Governing Legislation (Alberta): *Residential Tenancies Act*

Licence: A licence is permission to use property without exclusive possession or ownership.

- Does not transfer possession
- Usually temporary and revocable
- Creates fewer legal protections than a lease

Examples: Software licence, Parking permit, Event ticket

Bailment: Bailment occurs when personal property is temporarily transferred from one person (the bailor) to another (the bailee) for a specific purpose.

- Ownership does not transfer
- The bailee must take reasonable care of the property
- Property must be returned after the purpose is complete

Examples: Repair shop holding equipment, Storage unit, Pawn shop

Lien: A lien is a legal right to retain possession of property until a debt is paid.

- Secures payment for services or materials
- May allow sale of the property if debt remains unpaid

- Often registered against property title

Examples: Mechanic's lien, Builder's lien, Lender's lien

Mortgage Holder (Security Interest): A mortgage creates a security interest in real property in favour of a lender (mortgagee).

- Borrower (mortgagor) retains possession
- Lender has rights if borrower defaults
- Mortgage is registered on title

Examples: Conventional mortgage, Home equity line of credit

Easement and Right of Way: An easement is a legal right to use another person's land for a specific purpose.

- Does not transfer ownership
- Usually permanent and registered on title
- Runs with the land

Examples: Shared driveway, Utility access, Access road to landlocked property

Other property interests allow individuals and organizations to use, access, or secure property without full ownership. These interests balance the rights of owners with the needs of tenants, lenders, service providers, and the public, ensuring property is used fairly and efficiently under Canadian and Alberta law.

Legal Requirements to Purchase and Sell Property.

The legal requirements for buying and selling property depend on whether the property is real estate (real property) or personal property. Because real estate is permanent and high in value, it is subject to stricter legal rules than personal property.

- 1. Purchasing and Selling Real Estate (Real Property):** Real estate transactions are highly regulated and must follow formal legal procedures.

Legal Requirements:

- Written Contract
- Agreements must be in writing to be enforceable.
- Verbal agreements are generally not valid for real estate transactions.

Registration of Ownership

- Ownership must be registered under the *Land Titles Act*.
- Registration provides legal proof of ownership and priority over other claims.

Disclosure Obligations

- Sellers must disclose known material defects.
- Consumer protection laws such as the *Fair Trading Act* apply to representations made during the sale.

Spousal Consent (Where Applicable)

- Under the *Dower Act*, spousal consent may be required for the sale of a matrimonial home.

Completion of Searches

- Title searches, encumbrances, property tax status, and zoning compliance must be reviewed.

Role of Legal Professionals

- Lawyers handle the transfer of title and trust funds.
- Realtors must be licensed and follow professional regulations.

Relevant Legislation:

- *Law of Property Act*
- *Land Titles Act*
- *Fair Trading Act*
- *Dower Act*

2. Purchasing and Selling Personal Property: Personal property transactions are generally simpler and less formal.

Legal Requirements:

- Contract Formation
- A contract may be written, verbal, or implied.
- Terms must include agreement on price, description, and transfer of ownership.

Transfer of Ownership

- Ownership usually transfers upon payment and delivery.
- Registration is generally not required (with some exceptions, such as vehicles).

Condition of Goods

- The *Sale of Goods Act* implies certain conditions and warranties, such as goods being fit for purpose.

Consumer Protection

- The *Fair Trading Act* protects buyers from unfair or misleading business practices.

Security Interests

- If personal property is used as collateral, interests may be registered under the *Personal Property Security Act (PPSA)*.

Relevant Legislation:

- *Sale of Goods Act*
- *Fair Trading Act*
- *Personal Property Security Act*

Key Differences Summary

Real Estate	Personal Property
Written contract required	Verbal or written contract allowed
Title registration required	No title registration (generally)
Extensive legal searches	Minimal legal searches
Governed by land-specific legislation	Governed by sales and consumer laws
Higher legal formality	More flexible transactions

Purchasing and selling real estate involves formal contracts, registration, and legal oversight due to the permanence and value of land. In contrast, personal property transactions are more flexible, with fewer legal requirements, reflecting their movable nature and lower risk.

Understanding these differences helps ensure lawful and informed property transactions in Canada.

Legal Requirements to Rent or Lease Property

Renting or leasing property involves a legal agreement that grants temporary use of property without transferring ownership. The legal requirements differ depending on whether the property is real estate or personal property, with real estate subject to more extensive regulation.

1. **Renting or Leasing Real Estate:** Leasing real estate is highly regulated to protect both landlords and tenants.

Legal Requirements:

- Written Lease Agreement
- While some leases may be verbal, written agreements are strongly recommended and commonly required for clarity and enforcement.
- The lease must clearly state rent, term, responsibilities, and conditions.

Compliance with Residential Legislation

- In Alberta, residential rentals are governed by the *Residential Tenancies Act (RTA)*.
- The RTA sets rules for rent increases, security deposits, entry rights, termination, and dispute resolution.

Security Deposits

- Landlords may collect security deposits, which must follow legal limits and handling requirements under the RTA.

Landlord and Tenant Obligations

- Landlords must provide safe, habitable premises.
- Tenants must pay rent and maintain reasonable care of the property.

Registration and Property Rights

- Ownership remains with the landlord and is recorded under the *Land Titles Act*.
- Tenants gain exclusive possession for the lease term.

Consumer Protection

- The *Fair Trading Act* prohibits misleading or unfair practices related to rental agreements.

Relevant Legislation:

- *Residential Tenancies Act*
- *Fair Trading Act*
- *Land Titles Act*
- *Law of Property Act*

2. **Renting or Leasing Personal Property:** Leasing personal property is generally less regulated and more flexible.

Legal Requirements:

- Lease or Rental Agreement
- Agreements may be written or verbal.
- Terms typically include duration, payment, use restrictions, and return conditions.

Condition and Use of Goods

- Under the *Sale of Goods Act*, leased items must be fit for their intended purpose.

- The renter must use the property as agreed and return it in acceptable condition.
- Security Interests
- If the leased property is used as collateral or financed, interests may be registered under the *Personal Property Security Act (PPSA)*.
- Consumer Protection
- The *Fair Trading Act* applies to rental businesses and protects consumers from unfair practices.
- Transfer of Possession
- Possession transfers temporarily, but ownership remains with the lessor.
- Relevant Legislation:
- *Sale of Goods Act*
 - *Personal Property Security Act*
 - *Fair Trading Act*

Key Differences Summary

Real Estate Leasing	Personal Property Leasing
Governed by Residential Tenancies Act	Governed by Sale of Goods Act
Strong tenant protections	Fewer statutory protections
Strict rules on deposits and termination	Flexible contract terms
Exclusive possession of property	Temporary possession of goods
Highly regulated	Less regulated

Leasing real estate involves strict legal requirements to protect housing stability and safety, while leasing personal property focuses on contractual terms and consumer protection.

Implications of Assignment and Subletting. Assignment and subletting occur when a tenant transfers occupancy rights to another person. While both involve third parties, they carry different legal implications for the tenant, landlord, and new occupant.

Assignment: An assignment occurs when a tenant transfers all remaining rights and responsibilities under a lease to another person (the assignee). Legal Implications:

- **Tenant Responsibility Ends:** The original tenant is usually released from the lease once the assignment is complete, unless the lease states otherwise.
- **Landlord Consent Required:** Most leases require the landlord's written consent before an assignment can occur.
- **New Tenant Takes Over:** The assignee becomes fully responsible for rent, damages, and lease terms.
- **Lease Continues Unchanged:** The original lease terms remain in effect; only the tenant changes.

Subletting: A sublet occurs when a tenant rents the property to another person while remaining legally responsible to the landlord. Legal Implications:

- **Original Tenant Remains Liable:** The tenant remains responsible for rent, damages, and lease compliance.
- **Temporary Arrangement:** Sublets usually last for part of the lease term.

- Landlord Approval Often Required: Many leases and the *Residential Tenancies Act* require landlord consent.
- Separate Agreement: A new contract exists between the tenant and subtenant, but the landlord is not part of it.

Electronic and Internet transactions have significantly changed how property and commercial agreements are formed in Canada, creating new legal considerations for buyers and sellers. Canadian law recognizes electronic contracts and electronic signatures as legally binding, provided there is clear intent, consent, and the ability to authenticate the parties involved. However, these transactions raise concerns related to identity verification, fraud, privacy, and data security, particularly when agreements are completed online without face-to-face interaction.

Disclosure requirements, consumer protection laws, and fair trading legislation continue to apply to electronic transactions, meaning misleading representations or unfair practices remain unlawful regardless of the medium used. As a result, while electronic and Internet transactions increase efficiency and accessibility, they also require careful attention to security, accuracy, and legal compliance to ensure agreements are enforceable and rights are protected.

Listing Property. The procedures involved in listing a property for sale follow a structured legal and professional process designed to protect both the seller and potential buyers. The property owner typically begins by selecting a licensed real estate professional, who conducts a market analysis to determine an appropriate listing price based on comparable properties and current market conditions.

The seller and realtor then enter into a written listing agreement that outlines the listing price, commission, duration of the listing, and the responsibilities of each party. Before the property is marketed, the seller must ensure accurate disclosure of material facts about the property, including known defects or restrictions.

Once listed, the property is advertised through multiple platforms, showings are arranged, and offers are presented to the seller. Throughout the process, legal and ethical obligations apply, including compliance with consumer protection legislation and real estate regulations, until an acceptable offer is received and the property moves toward sale.

Offer to Purchase. An offer to purchase is a legally binding proposal made by a buyer to buy property under specific terms. To be enforceable, it must clearly outline the rights and obligations of both the buyer and the seller.

Real estate transactions, an offer to purchase typically includes the following elements.

- The offer identifies the parties involved, including the legal names of the buyer and seller, and provides a legal description of the property to ensure there is no uncertainty about what is being purchased. It states the purchase price and the amount of the deposit, which demonstrates the buyer's seriousness and is usually held in trust. The offer also specifies the possession or closing date, indicating when ownership and possession will transfer.

- A key element of an offer to purchase is the inclusion of subject-to conditions, which protect the buyer or seller by making the agreement conditional upon certain requirements being met. Common conditions include subject to financing approval, subject to a satisfactory home inspection, subject to the sale of the buyer's current property, or subject to review by a lawyer. These conditions must be satisfied or waived within a stated time period; otherwise, the offer may become void.
- Additional elements may include adjustments for property taxes or utilities, included or excluded items, and the method of acceptance. Once all terms are agreed and conditions are met or waived, the offer becomes a binding purchase contract enforceable by law.

Legal Search. When purchasing real property, several legal and practical searches are required to properly investigate the property and protect the buyer's interests. These searches help identify potential legal, financial, or physical issues before the sale is completed.

- **Title search** is conducted to confirm legal ownership and to identify any registered encumbrances such as mortgages, liens, caveats, or easements under the *Land Titles Act*. This ensures the seller has the right to sell the property and reveals any third-party interests that may affect ownership.
- **Property tax search** confirms that municipal taxes are paid and up to date. Outstanding taxes can become the responsibility of the new owner if not addressed prior to closing.
- **Zoning and land-use search** verifies that the property complies with municipal zoning bylaws and identifies permitted uses, building restrictions, or non-conforming uses that could limit future development or renovations.
- **Compliance or development search** checks whether buildings and improvements were constructed with proper permits and approvals. This can reveal illegal structures or unapproved renovations.
- **Survey or Real Property Report (RPR)** confirms property boundaries, location of structures, and encroachments onto neighbouring land or municipal property.

Additional searches may include utility searches, environmental assessments, or condominium document reviews, depending on the type of property.

Financing. When purchasing property, buyers may choose between a cash sale or financing the purchase. Each option has different legal and financial implications that affect risk, cost, and ownership obligations.

- **Cash sale** occurs when the buyer pays the full purchase price without borrowing money. Because no lender is involved, there is no mortgage registered against the property, which simplifies the transaction and reduces legal fees and interest costs. Cash buyers are not subject to lender approval, making the purchase faster and often more attractive to

sellers. However, the buyer must have sufficient funds available and assumes full financial risk.

- **Financed purchase** involves borrowing money from a lender and using the property as security. A conventional mortgage is granted when the buyer provides a down payment of at least 20 percent of the purchase price. The lender registers a mortgage on title, and the borrower (mortgagor) agrees to repay the loan with interest over time.
- **CMHC high-ratio mortgage** applies when the down payment is less than 20 percent. Because this type of mortgage presents greater risk to the lender, it must be insured by the Canada Mortgage and Housing Corporation (CMHC). The cost of insurance is added to the mortgage, increasing the total amount owed by the buyer.
- **Home equity line of credit (HELOC)** allows a property owner to borrow against the equity they have built in their home. The loan is secured against the property and offers flexible borrowing and repayment, but it increases debt and places the property at risk if payments are not made. Each financing option involves trade-offs between flexibility, cost, and risk.

Mortgage relationship. The mortgagee and the mortgagor have distinct but interrelated rights and obligations under Canadian and Alberta property law.

Mortgagor is the borrower and legal owner of the property. The mortgagor has the right to possess, use, and enjoy the property, including renting or selling it, provided the terms of the mortgage are followed. The mortgagor's primary obligations are to make mortgage payments as agreed, maintain the property, pay property taxes and insurance, and comply with all mortgage conditions. Failure to meet these obligations may place the mortgagor in default.

Mortgagee is the lender, typically a bank or financial institution, that holds a registered interest in the property as security for the loan. The mortgagee has the right to receive regular payments, charge interest, and enforce the mortgage if the mortgagor defaults. Enforcement rights may include demanding payment, initiating foreclosure or power of sale proceedings, or taking possession of the property in accordance with legislation. The mortgagee is obligated to act in good faith, discharge the mortgage once the debt is fully repaid, and follow legal procedures when enforcing its rights.

The mortgagor retains ownership and use of the property but assumes ongoing financial and maintenance responsibilities, while the mortgagee holds a secured interest designed to protect the repayment of the loan.

Professionals in buying and selling. The buying and selling of real property involves several professionals, each with a specific role to ensure the transaction is legal, accurate, and informed.

- **Realtors** act as intermediaries between buyers and sellers by marketing properties, arranging showings, negotiating offers, and ensuring disclosure obligations are met in accordance with real estate regulations.

- **Lawyers** provide legal advice, draft and review contracts, conduct title searches, register transfers and mortgages, and ensure that funds are properly transferred on closing.
- **Assessors** determine the assessed value of a property for taxation purposes, which helps municipalities calculate property taxes and allows buyers to understand ongoing tax obligations.
- **Surveyors** prepare surveys or Real Property Reports that identify property boundaries, improvements, encroachments, and rights of way, helping prevent boundary disputes.
- **Property inspectors** examine the physical condition of the property, identifying structural, mechanical, or safety issues that may affect value or lead to future repair costs.

Remedies for breach of contract. When a real estate purchase contract is breached, the law provides several remedies to address the harm caused and, where possible, enforce the agreement.

- **Specific performance**, where a court orders the breaching party to complete the transaction as agreed. This remedy is often sought in real estate cases because each property is considered unique.
- **Damages**, which involve monetary compensation to cover losses suffered by the non-breaching party, such as the difference between the contract price and a later sale price, legal costs, or additional expenses incurred due to the breach.
- **Forfeiture of the deposit** may occur if the buyer breaches the contract, allowing the seller to retain the deposit as compensation, subject to court review for fairness.
- **Terminate or rescind the contract**, in some cases, the innocent party may also have the right to release both parties from further obligations.

Required Assignment

/100 Marks

Final Assessment Portfolio: (Total 100 marks)

1. Explain and provide one example of each: *real, personal, and intellectual* property (30 marks)
2. Create a chart of property rights that differentiates the various types, including *leases, licenses, bailments, liens, mortgages, and easements* (30 marks)
3. Describe the steps in a real estate transaction, including *listing, offer, searches, financing, and the various roles professionals play* (20 marks)
4. Discuss the legal implications of electronic property transactions (10 marks)
5. Identify remedies for breach of contract (10 marks)

Flexible Submission Options: Written report, Slide deck, Video or oral presentation, Digital portfolio, Podcast, or teacher-approved alternative.

LGS3020: DISPUTE RESOLUTION

Description: Students examine and apply methods such as negotiation, mediation, arbitration, adjudication and litigation, and identify challenging issues related to the dispute resolution methods.

Why Dispute Resolution Matters. Conflict is part of everyday life, at work, at school, in families, and in communities. In Canada and Alberta, there are structured ways to resolve disputes that aim to be fair, safe, and lawful.

Benefits of Different Dispute Resolution Methods

Negotiation allows the people involved in a dispute to talk directly and try to reach an agreement on their own. Negotiation works best when both sides are willing to cooperate and communicate respectfully. Benefits of negotiation include:

- It is informal and easy to access
- It usually costs little or no money
- The people involved stay in control of the outcome
- Solutions can be flexible and creative
- It helps maintain relationships and communication

Mediation involves a neutral third party who helps the people in conflict communicate and find a solution. The mediator does not make decisions. Mediation is especially useful for workplace, family, and relationship conflicts. Benefits of mediation include:

- It is confidential and private
- It encourages cooperation rather than confrontation
- It is less stressful than going to court
- It allows both sides to be heard
- Agreements are more likely to be followed because both sides helped create them

Arbitration involves a neutral arbitrator who listens to both sides and makes a decision that is usually binding. Arbitration is commonly used in labour disputes and contract disagreements. Benefits of arbitration include:

- It is faster than court trials
- The process is private and confidential
- The arbitrator often has expertise in the subject area
- The decision is final and enforceable
- It provides structure without full court procedures

Litigation is the formal court process where a judge (and sometimes a jury) makes a decision based on law and evidence. Litigation is most appropriate when safety, rights, or serious legal issues are involved or when other methods have failed. Benefits of litigation include:

- Decisions are legally binding and enforceable
- It protects legal and constitutional rights
- It provides clear legal precedent
- It is necessary for criminal matters and serious disputes
- Courts can order remedies such as fines, compensation, or jail sentences

When Litigation Is Required. Litigation is the formal process of resolving a dispute in court, where a judge (and sometimes a jury) makes a legally binding decision. It is generally used only when other dispute resolution methods are not appropriate or have failed.

Litigation may be required in the following situations:

1. **Refusal to Participate in ADR**
 - When one or more parties refuse to negotiate, mediate, or arbitrate, the only option may be a court decision.
2. **Criminal Behaviour or Serious Legal Violations**
 - Cases involving crimes, fraud, or safety issues must be handled in court.
3. **Enforcement of Rights**
 - When a person's legal rights or constitutional rights (e.g., under the Canadian Charter of Rights and Freedoms) need to be protected.
4. **Safety Concerns**
 - Situations where immediate legal intervention is necessary, such as protection orders or injunctions.
5. **Complex or High-Stakes Disputes**
 - When disputes are complex, involve significant money, property, or multiple parties, formal legal proceedings may be necessary to ensure a fair and enforceable outcome.

Litigation is usually the last resort because it is formal, time-consuming, and expensive. Courts encourage alternative dispute resolution whenever possible to save time, reduce costs, and preserve relationships.

Comparing Civil and Criminal Standards and Procedures. Disputes in Canada are handled differently depending on whether they are civil or criminal. Understanding these differences helps determine which process is appropriate. If the goal is to recover money or enforce a contract, it is likely a civil case. If the goal is to punish a lawbreaker or protect society, it is a criminal case.

Feature	Civil Law	Criminal Law
Purpose	Resolve disputes between individuals, organizations, or groups	Address offences against society
Parties Involved	Plaintiff (person or organization bringing the case) vs. Defendant (person being sued)	Crown (government prosecutor) vs. Accused (person charged)
Standard of Proof	<i>Balance of probabilities</i> – more likely than not that something happened	<i>Beyond a reasonable doubt</i> – very high certainty required
Common Outcomes	Compensation, court orders (injunctions), specific performance	Fines, probation, imprisonment, or other criminal penalties
Examples	Contract disputes, property disagreements, personal injury claims	Theft, assault, fraud, impaired driving

Civil law focuses on resolving conflicts between parties and compensating harm. Criminal law focuses on punishing wrongs against society and protecting public safety. The burden of proof is higher in criminal cases because the consequences are more serious.

Innovations by the Court to Pre-Empt Trials. Courts in Canada and Alberta use several methods to try to resolve disputes before going to a full trial. These innovations save time, reduce costs, and often lead to solutions that better meet the needs of the parties involved.

Mini-Trials

- Informal, short presentations of each side's case to senior decision-makers or representatives.
- Helps parties understand the strengths and weaknesses of their case.
- Encourages settlement without a full trial.

Judicial Dispute Resolution (JDR)

- A judge facilitates discussions between parties to reach a settlement.
- The process is confidential and non-binding unless an agreement is reached.
- Often used in civil and family cases.

Victim-Offender Mediation

- A neutral mediator helps the victim and offender communicate.
- Focuses on repairing harm and accountability rather than punishment.
- Common in restorative justice programs and minor criminal cases.

Sentencing Circles

- Community-based approach rooted in Indigenous legal traditions.
- Involves the offender, victim, family, and community members.
- Focuses on healing, accountability, and community involvement.
- Mainly used in criminal sentencing to find solutions beyond traditional punishments.

These innovations aim to resolve disputes efficiently, avoid lengthy trials, and promote fairness. They often work best when parties are willing to seek solutions collaboratively.

Examples of Dispute Resolution Methods in Various Situations

Negotiation: Direct discussion between parties to reach an agreement without a third party.

Negotiation is often the first step because it is informal, quick, and low-cost. Examples of Use:

- **Workplace:** Two coworkers disagree over shift schedules and negotiate a fair rotation.
- **Relationship conflict:** Family members decide how to share household responsibilities.
- **Labour disputes:** A union and management negotiate minor contract changes before escalation.

Mediation: A neutral third party facilitates discussion between disputing parties. The mediator does not decide the outcome. Mediation encourages collaboration and helps preserve relationships. Examples of Use:

- **Family law:** Mediating custody or parenting arrangements after separation.
- **Workplace:** Mediation between an employee and employer over harassment complaints.
- **Environmental issues:** Mediating discussions between a community and a company regarding pollution concerns.

Arbitration: A neutral arbitrator hears the arguments and evidence from both sides and makes a binding decision. Arbitration is private, structured, and provides an enforceable decision faster than a court trial. Examples of Use:

- **Labour disputes:** Resolving grievances between unions and employers over contract interpretations.
- **Contract disputes:** A builder and homeowner disagree on contract fulfillment; an arbitrator decides compensation.
- **Professional disputes:** Between medical professionals and organizations over certification or practice issues.

Litigation: Formal court process in which a judge (and sometimes a jury) makes a binding decision. Litigation is necessary when legal rights must be enforced or serious issues, including safety or criminal matters, are involved. Examples of Use:

- **Environmental issues:** A company is taken to court for violating environmental laws.
- **Labour disputes:** Legal action for unpaid wages or wrongful dismissal.
- **Conflicts with government:** A citizen challenges a government decision in court.
- **Serious personal disputes:** Cases involving personal injury or breach of contract.

Summary Table

Method	Key Features	Real-Life Examples
Negotiation	Direct discussion, informal	Workplace shifts, family chores, minor union agreements
Mediation	Neutral facilitator, non-binding	Custody arrangements, workplace harassment, environmental concerns
Arbitration	Arbitrator decides, binding	Labour contract grievances, contract disputes, professional issues
Litigation	Formal court process, binding	Environmental lawsuits, unpaid wages, government challenges, serious personal disputes

Progression of Dispute Resolution Options. Dispute resolution often follows a step-by-step progression from least formal to most formal. This allows parties to try simpler, faster, and less expensive methods before resorting to court.

Negotiation

- **First step:** Parties communicate directly to resolve the dispute.
- **Why first:** It is informal, flexible, and low-cost. If successful, no outside involvement is needed.

Mediation

- **Second step:** A neutral third-party mediator helps guide discussion.
- **Why second:** It adds structure and guidance while still being collaborative and non-binding.

Arbitration

- **Third step:** A neutral arbitrator listens to both sides and makes a **binding decision**.
- **Why third:** Arbitration provides a formal resolution without going to full court trial. It is faster and more private than litigation.

Litigation

- **Final step:** Formal court process with a judge (and sometimes a jury).
- **Why last:** Litigation is time-consuming, costly, and public. It is reserved for disputes that cannot be resolved by other methods or involve serious legal issues.

The progression helps save time, money, and relationships. Less formal options are tried first, while more formal processes are reserved for unresolved or high-stakes conflicts. Understanding this progression is important for selecting the best approach for any real-life dispute.

Required Assignment**/100 Marks****Final Assessment Portfolio: (Total 100 marks)**

1. Differentiate between *traditional dispute* resolution and *alternative dispute* resolution. (10 marks)
2. Explain the benefits and when best to use each of: *Negotiation, Mediation, Arbitration, Litigation* (20 marks)
3. Describe two court innovations used to avoid trials (e.g., JDR, sentencing circles, victim-offender mediation, mini-trials). (20 marks)
4. Choose two different situations from the list below and explain how a dispute could be resolved in each: (20 marks)
 - *Environmental issue, Workplace scenario, Labour dispute, Relationship conflict*
 - *Individual vs government conflict*
7. Identify a challenging conflict situation (real or realistic). (30 marks)
 - *Describe the conflict and who is involved*
 - *Identify two possible dispute resolution options*
 - *Recommend the best option and explain why*

Flexible Submission Options: Written report, Slide deck, Video or oral presentation, Digital portfolio, Podcast, or teacher-approved alternative.

LGS3040: NEGLIGENCE

Description: Students explore the legal meaning of negligence and legal actions relating to negligence. Negligence is one of the most significant areas of civil law in Canada. Students will explore how courts determine responsibility for harm, how liability is assessed, and how remedies are awarded through the civil justice system.

What Constitutes Negligence? Evolution of Negligence. Negligence developed through common law, primarily in England, and was adopted into Canadian law. Early legal systems focused on intentional harm; negligence law emerged to address unintentional but careless conduct.

Evolution of the Legal Area of Negligence**1. Origins in Common Law**

- Negligence law developed from **English common law**, which initially focused on intentional wrongdoing and property damage.
- Early courts did not recognize liability for careless acts unless there was a contractual relationship or direct harm to property.

2. Industrial Revolution and Social Change

- With industrialization, workplaces and public spaces became more hazardous.
- Accidents increased, and society recognized the need for legal protections for individuals harmed by others' carelessness.
- Courts began to consider **duty of care** beyond contractual obligations.

3. The Neighbour Principle (1932)

- Landmark case: *Donoghue v. Stevenson* (1932), UK.
- Established that individuals owe a duty to take reasonable care to avoid acts that could foreseeably harm “neighbours” — those closely affected by one’s actions.
- This principle became the foundation of modern negligence law in Canada.

4. Adoption in Canadian Law

- Canadian courts gradually adopted common law principles, refining them to reflect Canadian values and legislation.
- Courts started recognizing duties in diverse contexts: medical, educational, professional services, and product liability.

5. Modern Canadian Negligence Law

- Today, negligence law in Canada is well-established and adaptable.
- Courts weigh elements such as duty of care, standard of care, breach, causation, and damages.
- Legislation in Alberta and across Canada, such as the Occupiers’ Liability Act, also shapes liability alongside common law.

6. Ongoing Development

- Courts continue to refine negligence principles in response to:
 - Emerging technologies (e.g., self-driving vehicles)
 - Health care and professional accountability
 - Environmental and consumer protection concerns

Negligence law evolved from a narrow focus on intentional harm to a broader principle recognizing society's interest in preventing careless acts that harm others. Its modern form combines judicial precedent with statutory guidance to protect individuals while balancing fairness and reasonableness.

Elements of Negligence. To succeed in a negligence claim, a plaintiff must prove four elements on a balance of probabilities. Failure to prove any one of the elements result in the claim failing.

1. *Duty of care existed*
2. *Standard of care was breached*
3. *Causation between breach and harm*
4. *Damages resulted*

Duty of Care

The Neighbour Principle. Established in *Donoghue v. Stevenson (1932)*, states: Individuals must take reasonable care to avoid acts or omissions which they can reasonably foresee would likely injure their “neighbour.” A neighbour is defined as anyone closely and directly affected by one’s actions. Canadian courts apply this principle to determine whether a duty of care exists.

Rise to Duty of Care. Courts consider proximity, foreseeability, and public policy when determining whether a duty of care exists. Common duty of care relationships include:

- Drivers to other road users
- Teachers to students
- Doctors to patients
- Manufacturers to consumers
- Property owners to visitors

Standard of Care

The Reasonable Person & Foreseeability. The reasonable person standard asks: What would an ordinary, prudent person have done in the same circumstances? Foreseeability refers to whether a reasonable person would anticipate that harm could result from their actions.

Special Categories. The standard of care may be adjusted for:

- Minors: Compared to children of similar age and experience
- Professionals: Compared to reasonably competent professionals in the same field
- Experts: Held to higher standards due to specialized knowledge

Breach of Standard of Care. A breach occurs when conduct falls below the expected standard. Courts assess: Risk of harm, Severity of potential injury, Cost and practicality of precautions.

Causation

Link Between Breach and Damage. In negligence, it is not enough to show that a duty of care existed and that the standard of care was breached. The plaintiff must also prove that the defendant’s breach actually caused the harm or damage suffered. This connection is causation.

Proximate Cause

- The breach must be the proximate cause of the harm.

- Proximate cause asks whether the harm was a direct and reasonably foreseeable result of the defendant's actions.
- Courts often apply the "but-for" test: "But for the defendant's breach, would the harm have occurred?"
- If the answer is no, the breach is a cause of the damage.
- If the harm would have occurred regardless of the breach, the link is broken, and the claim fails.

Foreseeability

- Courts consider whether a reasonable person could have foreseen the harm resulting from the breach.
- If the harm was too remote or unexpected, the defendant may not be liable, even if there was a breach.

Multiple Causes

- Sometimes, more than one factor contributes to the damage.
- Courts may apportion liability among multiple defendants or consider contributory negligence if the plaintiff partially caused the harm.
- Liability is assessed on the balance of probabilities (more likely than not).

Examples:

- A driver runs a red light (breach) and hits a pedestrian, causing injury (damage).
- The driver's breach directly caused the injury and the harm was foreseeable.
- If a freak event, like a meteorite, also caused the injury at the same time, the court would evaluate proximate cause and may limit liability.

The link between breach and damage ensures that negligence liability is fair and reasonable. The defendant is only responsible for harm that was directly caused and reasonably foreseeable from their breach of duty.

Multiple Causes

- **Apportionment of Liability.** When multiple defendants contribute to harm, courts may divide responsibility among them.
- **Balance of Probabilities.** The plaintiff must show it is more likely than not that the defendant's conduct caused the damage.
- **Contributory Negligence.** If the plaintiff contributed to their own harm, damages may be reduced proportionally under Alberta legislation.

Damages and Remedies

Loss or Injury. Actual harm must be proven. This may include: Physical injury, Psychological harm, Property damage, & Financial loss.

Types of Damages

- General damages: Pain and suffering
- Special damages: Medical bills, lost income
- Punitive damages: Rare; intended to punish egregious conduct

Defences in Negligence

Burden of Proof. The plaintiff bears the burden of proving negligence on the balance of probabilities.

Difficult Elements to Prove

- Car accidents: Causation and contributory negligence
- Medical malpractice: Standard of care and expert evidence
- Slip and fall: Duty of care and foreseeability

Civil Court Structure and Process (Alberta)

Structure and Process of the Civil Court in Alberta. Civil law in Alberta deals with disputes between individuals, organizations, or both, usually over money, property, or rights. Negligence claims are handled in civil courts, primarily the Provincial Court of Alberta and the Court of Kings's Bench.

Court Structure

1. **Provincial Court of Alberta – Civil Division**
 - Handles claims up to \$100,000 (as of current legislation).
 - Faster and less formal than higher courts.
 - Small claims and straightforward negligence cases are usually heard here.
2. **Court of Kings's Bench of Alberta**
 - Handles claims over \$100,000, complex cases, and appeals from Provincial Court.
 - More formal procedures; allows for expert testimony and detailed discovery.
3. **Court of Appeal of Alberta**
 - Reviews decisions from the Court of Queen's Bench or Provincial Court.
 - Focuses on errors of law, not re-assessing facts unless there is a clear mistake.

Civil Court Process

1. **Initiating a Claim (Plaintiff's Role)**
 - **Civil Claim Form:** The plaintiff sets out the basis of the claim, including facts, legal basis, and damages sought.
 - **Service of Claim:** The claim must be formally delivered to the defendant.
 - **Supporting Documents:** Affidavits, contracts, or evidence supporting the claim.
2. **Defending a Claim (Defendant's Role)**
 - **Dispute Note or Statement of Defence:** The defendant responds to the plaintiff's claim, accepting, denying, or providing alternative facts.
 - **Counterclaims:** Defendants may assert their own claims against the plaintiff.
 - **Evidence Submission:** Supporting documents or affidavits are provided.
3. **Discovery Phase**
 - Both parties exchange relevant information.
 - Includes interrogatories, document production, and depositions.
 - Helps clarify issues and avoids surprises at trial.
4. **Pre-Trial and Settlement Discussions**
 - Courts often encourage settlement before trial.
 - **Mediation or negotiation** may reduce time, cost, and stress.

5. Trial

- Both sides present evidence and arguments.
- Witnesses, including expert witnesses, may be called.
- Court decides liability and awards damages if applicable.

6. Judgment and Enforcement

- **Judgment:** Court orders who is liable and the amount owed.
- **Enforcement Methods:** Wage garnishment, Seizure of property, Payment orders or liens

7. Appeals

- Parties can appeal decisions based on errors of law or procedure.
- Appellate courts review the legal reasoning, not usually the facts.

Civil courts use “balance of probabilities” rather than “beyond a reasonable doubt.” Documents and procedural steps are crucial; errors may lead to delays or dismissal. Understanding court structure and process helps plaintiffs and defendants navigate claims effectively.

Special Types of Negligence

Voluntary Assumption of Risk. This defence applies when a person knowingly accepts the risk of harm.

Special Situations and Types of Liability. While general negligence requires proving duty, breach, causation, and damages, certain situations impose liability automatically or in a special way. These are designed to protect the public, ensure accountability, or allocate risk fairly.

Strict Liability: Liability imposed regardless of fault or intent. The defendant is responsible for harm even if they took all reasonable care. Protects the public from inherently dangerous activities where the risk cannot be fully eliminated. Common Situations:

- *Ultra-hazardous activities (e.g., blasting, keeping wild animals)*
- *Product liability in some consumer cases*

Vicarious Liability: Liability imposed on one person for the actions of another. Employers held responsible for employees acting within the scope of employment. Ensures that victims can recover damages from parties with the resources to pay and encourages organizations to supervise employees properly.

- *Example: A delivery driver negligently causes an accident while performing work duties; the employer may be liable.*

Occupiers’ Liability: Responsibility of property owners or occupiers to ensure visitors are reasonably safe. Applies to all lawful visitors (invitees, licensees, and in some cases, trespassers). Duty includes keeping premises in a safe condition, warning of hazards, and taking reasonable precautions. Governed by statutes like Alberta’s *Occupiers’ Liability Act*.

- *Example: A store owner must ensure wet floors are cleaned or marked with warning signs to prevent slip and fall accidents.*

Waivers: Legal documents where a person agrees to accept risks and relinquishes the right to sue for negligence. Must be clear, unambiguous, and voluntarily signed. Cannot waive liability

for gross negligence or intentional harm. Common in recreational activities, gyms, and adventure sports. Allocates risk to participants and reduces legal exposure for providers.

These special liabilities exist to protect the public in high-risk situations (strict liability), hold organizations accountable for their employees' actions (vicarious liability), ensure safety on private property (occupiers' liability), Allow voluntary risk acceptance while clarifying legal responsibility (waivers). Understanding these situations helps students recognize when negligence rules are modified or extended by law to address societal needs and fairness.

Required Assignment**/100 Marks****Final Assessment Portfolio: (Total 100 marks)**

1. *Explain duty of care and neighbour principle (15 marks)*
2. *Clarify standard of care and breach remedies (20 marks)*
3. *Analyze causation and contributory negligence (15 marks)*
4. *Examine negligence damages and potential remedies (20 marks)*
5. *Describe and explain negligence defences and burden of proof (15 marks)*
6. *Describe the structure and process of the civil court (15 marks)*

Flexible Submission Options: Written report, Slide deck, Video or oral presentation, Digital portfolio, Podcast, or teacher-approved alternative.

LGS3060: CONTROVERSY & CHANGE

Description: Students explore how controversial issues evoke responses that may bring about changes in the law and describe a wide variety of strategies that may be used for changing the law. Students will analyze differing viewpoints, research current and historical legislation, and propose informed, realistic legal or policy changes.

What Is a Controversial Issue?

A controversial issue is a topic, event, or situation that:

1. Involves strongly differing opinions – People or groups have conflicting views about what is right, fair, or acceptable.
2. Raises ethical, moral, social, or legal questions – The topic often challenges values, beliefs, or established rules.
3. Generates public debate or discussion – Controversial issues usually provoke discussion in media, schools, government, and communities.
4. Has legal or societal implications – Decisions or policies about the issue may affect laws, rights, or public safety.

A controversial issue is not simply a matter of personal preference; it affects society or law in some way. Understanding different viewpoints is essential before proposing solutions. Many controversial issues evolve over time as laws, social norms, and public opinions change.

Examples of Controversial Issues

Local Examples (City or Community Level):

- School dress codes and freedom of expression
- Local bylaw enforcement (e.g., noise restrictions, pet regulations)
- Municipal funding priorities (parks, recreation, social programs)

National Examples (Canada):

- Gun control legislation
- Abortion and reproductive rights
- Indigenous treaty rights and land claims
- Cannabis legalization and regulation

International Examples:

- Climate change policies and emission targets
- Refugee and immigration policies
- Capital punishment
- Internet censorship and freedom of speech

Legal Elements of Controversial Issues. When studying a controversial issue, it is essential to identify and understand the legal elements, the parts of the law that are directly connected to the issue. This helps students analyze how the law shapes, limits, or resolves debates in society.

Identify Relevant Laws and Regulations: Determine which federal, provincial, or municipal laws apply, as this determines who has authority. *Examples:*

- **Charter of Rights and Freedoms:** Protects freedom of expression, religion, and equality rights.
- **Criminal Code of Canada:** Covers offenses like assault, harassment, or cybercrime.
- **Alberta Human Rights Act:** Addresses discrimination in employment, services, and accommodation.
- **Municipal bylaws:** Regulate local matters such as noise, zoning, or pet ownership.

Examine Historical Context: Laws often exist in response to historical events or social movements. *Examples:*

- Same-sex marriage became legal after court challenges and social advocacy.
- Gun control legislation evolved after public safety concerns and high-profile incidents.
- Indigenous land rights laws reflect treaties and historical injustices.

Consider Legal Principles: Some issues involve fundamental legal principles, identify which principles are in tension for your chosen issue. Such as:

- **Rights vs. responsibilities** (e.g., free speech vs. hate speech laws)
- **Equality and non-discrimination** (e.g., disability accommodation)
- **Due process and fair treatment** (e.g., criminal trials, immigration hearings)

Case Law: Court decisions interpret laws and set precedents. *Example:*

- **Carter v. Canada (2015):** Legalized assisted dying by interpreting Charter rights.
- **R. v. Keegstra (1990):** Examined hate speech under freedom of expression.

Societal Implications: Laws do not exist in a vacuum; they affect people's lives. Consider:

- Who benefits or is protected by the law?
- Who might be limited or restricted?
- How does the law influence public opinion or social behaviour?

Other Jurisdictions: Many controversial issues have legal frameworks in other provinces or countries. Comparison helps understand alternative approaches and potential reforms. *Example:*

- Abortion laws differ between Canada, the U.S., and European countries.
- Gun control laws vary widely between Canada and the U.S.

Analyzing Methods Used to Bring About Changes in the Law.

Laws do not remain static, they evolve over time in response to societal needs, controversies, and new challenges. Understanding how legal change occurs is essential for analyzing controversial issues.

Legislative Change: Laws can be created, amended, or repealed by federal or provincial governments through the legislative process. Process:

1. Issue is identified (by public concern, government agenda, or court decision)
2. Lawmakers draft a bill
3. Bill goes through debate, committees, and voting

4. If passed, the bill becomes law

Example:

- *Legalization of cannabis in Canada (2018) through federal legislation.*
- *Alberta's changes to traffic laws or education policies.*

Court Decisions (Judicial Change): Courts interpret existing laws and may set new precedents that affect legal practice. Court decisions can force governments to change laws or policies.

Example:

- *Carter v. Canada (2015): Supreme Court decision legalized medically assisted dying.*
- *R. v. Keegstra (1990): Clarified limits on hate speech.*

Public Advocacy and Social Movements: Citizens, organizations, and interest groups influence law through petitioning, protests, lobbying, or awareness campaigns.

Example:

- *LGBTQ+ rights movements influenced legal recognition of same-sex marriage.*
- *Anti-smoking campaigns led to stricter tobacco laws and public smoking bans.*

Royal Commissions and Inquiries: Governments appoint investigations into major social, legal, or political issues. Recommendations often result in law reform or policy changes.

Example:

- *Canadian Royal Commission on Aboriginal Peoples (1991–1996) influenced Indigenous self-government policies.*
- *Inquiries into healthcare or public safety issues can lead to new legislation.*

Media and Public Opinion: Media coverage, social media campaigns, and public discourse can pressure lawmakers to address controversial issues.

Example:

- *Cyberbullying awareness campaigns led to amendments in criminal law and school policies.*
- *Environmental movements influence climate legislation and emission controls.*

International Influence and Treaties: Laws can change to comply with international treaties or agreements.

Example:

- *Canada's environmental laws have adapted to meet Paris Agreement targets.*
- *Human rights treaties influence discrimination and equality legislation.*

Multiple methods often work together: court decisions, public advocacy, and legislation frequently intersect. Legal change is usually gradual, but high-profile controversies can accelerate the process. Understanding the method of change helps identify realistic solutions to controversial issues.

Viewpoints and Perspectives: Different viewpoints are shaped by: Personal values and lived experiences, Cultural or religious beliefs, Political ideologies, Economic interests & Historical

context. In a democratic society, disagreement is expected, but laws must balance: *Individual rights, Collective safety, & Equality under the law.* Distinguish between:

- Opinion vs. evidence,
- Emotion-based arguments vs. legal reasoning

Possible Solutions to Effect Changes in the Law.

After analyzing a controversial issue and understanding how laws currently function, students are encouraged to propose realistic solutions for legal or policy change. This involves critical thinking, research, and creativity, while remaining grounded in Canadian and Alberta law.

Understand the Issue. Strong proposals address both legal feasibility and societal impact.

Before proposing a solution, ensure you have:

- Defined the controversial issue clearly
- Identified affected parties and stakeholders
- Researched relevant laws and court decisions
- Considered historical and societal context

Identify Possible Methods for Change. Consider which methods are practical and appropriate for issue:

Method	How It Can Be Used	Example
Legislative Change	Drafting or advocating for new laws, amendments, or repeals	Proposing stricter gun control legislation
Court Challenge	Filing legal cases to reinterpret existing law	Charter challenge on religious accommodation
Public Advocacy / Lobbying	Awareness campaigns, petitions, protests, or social media	Anti-bullying campaigns to strengthen cyber-safety laws
Policy Reform by Government	Government agencies adjust policies within existing law	Environmental regulation changes for emission control
Collaboration with Organizations	NGOs, advocacy groups, or professional associations	Working with disability rights groups to amend accessibility standards

Consider Legal Feasibility: Ensure proposals respect the Canadian Charter of Rights and Freedoms and other applicable laws. Consider whether the solution aligns with provincial authority or federal jurisdiction.

Example: Health care policies often require provincial involvement, while criminal law changes are federal.

Assess Potential Impacts: Who benefits and who may be limited by the change?

- How will society react?
- What are possible unintended consequences?

Example: Proposing stricter drug laws may reduce use but could increase prison populations—consider alternative measures like education or rehabilitation.

Develop a Clear Proposal: Clearly state the goal of the change. Explain the method of implementation (legislation, court action, policy change, advocacy)

- Support the proposal with evidence, research, and legal reasoning. Address challenges and limitations

Example: Cyberbullying

Proposal: Amend the Criminal Code and Alberta Education Act to explicitly define and penalize online harassment in schools. Implement public education campaigns and support services.

Multiple Perspectives: Consider compromise solutions if the issue involves opposing viewpoints. Solutions that balance rights, responsibilities, and public safety are more likely to succeed

Credible sources include Government of Canada and Government of Alberta websites, Federal & Provincial Court decisions, Reputable news organizations, Academic or legal publications.

Areas of Study

Students must select **one** issue from the following list for their final summative project:

- Aboriginal self-government
- Abortion
- Capital punishment
- Censorship
- Civil liberties
- Cyberbullying and stalking
- Discrimination based on disability
- Emission control
- Genetically modified food
- Gun control
- Immigration
- Mandatory drug testing
- Regulation of electronic communication and media
- Religious accommodation
- Right to die
- Role of prisons
- Same-sex marriage
- Sex offender reintegration and registration
- Substance control and abuse
- Victims of crime
- Treaty rights, repatriation, and land claims
- Waste management
- Other as approved

Required Assignment**/100 Marks**

Controversy & Change Legal Inquiry Project. Students will conduct an in-depth legal inquiry into **one controversial issue** and demonstrate understanding of: Differing viewpoints, Relevant laws, Methods of legal change, Proposed solutions

Final Summative Project (100 marks)

- 1. Issue Definition & Context (20 marks)**
 - *Clear explanation of the issue*
 - *Why it is controversial*
 - *Identification of legal implications*
- 2. Viewpoints & Perspectives (20 marks)**
 - *At least two opposing viewpoints*
 - *Analysis of how these viewpoints are expressed (media, courts, public debate)*
- 3. Legal Research (20 marks)**
 - *Relevant Canadian and/or Alberta laws*
 - *Historical background*
 - *Current legal status*
 - *Impact on society*
 - *Comparison with at least one other country*
- 4. Methods of Legal Change (20 marks)**
 - *Analysis of how change has occurred or could occur*
 - *Role of courts, government, and public advocacy*
- 5. Proposed Solution or Recommendation (20 marks)**
 - *Student's informed proposal*
 - *Justification using evidence and legal reasoning*
 - *Consideration of benefits and challenges*

Flexible Submission Options. Students may choose one or more of the following formats: Written report, Slide presentation, Video documentary, Podcast or audio recording, Visual infographic with written explanation, Oral presentation with visual supports

Alternative formats may be approved in consultation with the teacher.

LGS3070: LANDMARK DECISIONS

Description: Students analyze in detail landmark decisions and their influence on society. Landmark court decisions shape the interpretation of law, define rights and responsibilities, and reflect evolving societal values.

Students examine pivotal Canadian and Alberta court cases to understand how judicial decisions influence legislation, public policy, and everyday life. Emphasis is placed on precedent, Charter interpretation, and the dynamic relationship between courts, society, and government.

What Is a Landmark Decision?

A landmark decision is a court ruling that significantly changes the interpretation of the law or establishes a new legal principle. These decisions often:

- Clarify constitutional rights
- Change how laws are applied
- Influence future court decisions and legislation
- Reflect shifts in social and political values

Landmark decisions are most often issued by: The Supreme Court of Canada, Provincial Courts of Appeal & Occasionally lower courts when decisions are groundbreaking.

Precedent in the Canadian Legal System. Precedent refers to a legal principle or rule established in a previous court decision that is binding or persuasive in future cases with similar facts.

How Precedent Operates

- Stare decisis: Courts are expected to follow established precedents to ensure consistency and fairness.
- Vertical precedent: Lower courts must follow decisions of higher courts.
- Horizontal precedent: Courts may follow their own previous decisions but can depart in certain circumstances.
- Distinguishing cases: Judges may decide a precedent does not apply due to different facts.

Importance of Precedent: Promotes stability and predictability, ensures equal treatment under the law, & allows the law to evolve gradually over time.

Categories of Landmark Decisions

Students will select one landmark decision from the approved list below for in-depth study.

Canadian Legal Information Institute
Supreme Court of Canada

<http://www.canlii.org>
<https://www.scc-csc.ca/>

Language Rights

- *Mahe v. Alberta* (1990)
- *Reference re Public Schools Act (Man.)* (1993)

- *Forest v. Manitoba* (1979)
- *Bilodeau v. Manitoba* (1986)
- *AG Quebec v. Protestant School Boards* (1984)

Employment Law

- *Wallace v. United Grain Growers* (1997)

Family Law

- *Murdoch v. Murdoch* (1975)
- *Pettkus v. Becker* (1980)
- *Pelech v. Pelech* (1987)
- *Moge v. Moge* (1992)

Criminal Law

- *R. v. Morgentaler* (1993)
- *R. v. Big M Drug Mart* (1985)
- *R. v. Brydges* (1990)
- *R. v. Oakes* (1986)
- *R. v. Stinchcomb* (1995)
- *R. v. Askov* (1990)

Tort Law

- *Whiten v. Pilot Insurance* (2002)
- *Donoghue v. Stevenson* (1932)

Immigration

- *Cunningham v. Tomey Homma* (1903)
- *Quong-Wing v. R.* (1903)

Canada's Sovereignty

- *Operation Dismantle v. The Queen* (1985)

Expert Witness & Miscarriages of Justice

- *Reference re Steven Truscott* (1967)
- *R. v. Marshall / Bernard* (1999/2005)

Rights and Freedoms

- *Roncarelli v. Duplessis* (1959)
- *Andrews v. Law Society of BC* (1989)
- *Vriend v. Alberta* (1998)
- *R. v. Keegstra* (1990)
- *Little Sisters Book and Art Emporium* (2007)

Aboriginal Law

- *Riel v. The Queen*
- *R. v. Van der Peet* (1996)
- *Haida Nation v. BC* (2004)

Right to Die / Medical Ethics

- *R. v. Latimer* (2001)
- *Rodriguez v. BC* (1993)
- *Nancy B. v. Hôtel-Dieu* (1992)

Medical Treatment

- *A.C. v. Manitoba* (2009)

Social and Political Context

Landmark decisions do not occur in isolation. Courts are influenced by: Public opinion, Political climate, Social movements, Economic conditions, Emerging rights claims.

Students will consider:

- *What issues were controversial at the time?*
- *Whose voices were represented or excluded?*
- *How government policies influenced the case*

Comparing Past and Present Justice

Students will examine:

- *Whether the decision aligns with today's values*
- *How societal expectations have changed*
- *Whether the decision would likely be the same if heard today*

Key considerations:

- Charter interpretation
- Equity and inclusion
- Indigenous reconciliation
- Gender and minority rights

Legal Impact and Legacy

Students will research:

- *How the decision influenced later court cases*
- *Changes to legislation or government policy*
- *Ongoing relevance in modern legal debates*

This includes identifying:

- Subsequent Supreme Court rulings
- Provincial or federal legislative amendments
- Continuing controversies or unresolved issues

Future Landmark Issues.

Students will propose emerging legal issues that may result in future landmark decisions, such as:

- *Artificial intelligence and privacy*
- *Climate change accountability*
- *Indigenous self-governance*
- *Medical assistance in dying*
- *Freedom of expression online*
- *Youth rights and digital identity*

Required Assignment

/100 Marks

Final Summative Project Components (100 marks) The student will select one landmark decision from the list identified.

- 1. Provide overview of selected Case (Facts, parties, court level, decision) 20 marks*
- 2. Precedent Analysis (Explanation of precedent and legal reasoning) 20 marks*
- 3. Social & Political context (Analysis of environment that led to decision) 20 marks*
- 4. Legal Impact & Legacy of decision (Influence on later cases/laws- precedent) 20 marks*
- 5. Landmark Issue (Reasoned prediction and justification) 20 marks*

Final submission must clearly address each component listed above.

Flexible Submission Options:

Students may choose one or more of the following: Written report, Slideshow presentation, Video or documentary-style submission, Podcast or recorded oral presentation, Visual legal timeline with written explanation

LGS3080: CRIMINAL LAW

Description: Students examine the criminal justice system, including the criminal process and the roles and responsibilities of the participants. Students also explore challenging issues and law-related careers. Students will gain an understanding of criminal law principles, the roles of legal actors, and the criminal justice process in Canada, including Alberta.

Evolution of the Canadian Criminal Justice System

- Early Canadian criminal law was influenced by English common law.
- The Criminal Code of Canada (1892, revised multiple times) codifies offences and procedures.
- Development of youth justice system with the Youth Criminal Justice Act (YCJA) (2003).
- Shift towards rehabilitation, restorative justice, and community-based sanctions.

Common law: Law developed through judicial decisions rather than statutes.

Statutory law: Law passed by a legislative body.

Restorative justice: Legal approach focusing on repairing harm and reintegrating offenders into society.

The legal definitions of child, youth, and adult are established to determine criminal responsibility and the applicable justice system. These definitions are primarily governed by the Criminal Code of Canada and the Youth Criminal Justice Act (YCJA).

- **Child:** A person under 12 years of age. Children under 12 cannot be charged with a criminal offence in Canada. The justice system focuses on child welfare and protection, rather than punishment.
- **Youth:** A person 12 to 17 years of age. Youth are subject to the Youth Criminal Justice Act (YCJA) rather than the standard adult criminal system. The YCJA emphasizes rehabilitation, reintegration, and accountability while protecting the privacy and rights of young people. Youth can face reduced sentences, diversion programs, and alternatives to incarceration. Youth are legally responsible for criminal acts but are treated differently due to their age and developmental stage.
- **Adult:** A person 18 years of age or older (in some provinces, certain serious offences may treat 16–17-year-olds as adults). Adults are fully criminally responsible under the Criminal Code of Canada. They are subject to the full range of criminal sanctions, including imprisonment, fines, and other penalties.

Criminal law and provincial quasi-criminal law are established through federal and provincial statutes, which define offences, procedures, and penalties. **Federal statutes** establish criminal offences across Canada. The main statutes include:

Statute	Purpose / Coverage	Key Notes
Criminal Code of Canada	Defines criminal offences and general criminal procedures	Covers offences such as assault, theft, fraud, sexual offences, homicide, and provisions for sentencing, bail, and trial procedures.

Statute	Purpose / Coverage	Key Notes
Controlled Drugs and Substances Act (CDSA)	Governs offences related to drugs	Covers possession, trafficking, production, import/export of controlled substances.
Firearms Act	Regulates possession, acquisition, and use of firearms	Linked to criminal offences related to firearms violations.
Youth Criminal Justice Act (YCJA)	Governs criminal responsibility of youth aged 12–17	Focuses on rehabilitation, accountability, and protection of young persons' privacy.
Criminal Code – Traffic & Regulatory Offences (Federal)	Applies to offences such as impaired driving on federal lands	Some federal offences intersect with provincial regulations.

Provincial Statutes – Quasi-Criminal Law

Provincial statutes define quasi-criminal offences, which are regulatory or administrative in nature but carry fines, penalties, or minor imprisonment:

Statute	Purpose / Coverage	Key Notes
Traffic Safety Act (Alberta)	Governs traffic offences	Speeding, driving without a license, impaired driving (provincial offences for less serious matters), fines and penalties.
Provincial Offences Procedures Act	Establishes procedures for provincial offences	Applies to regulatory offences under various provincial statutes.
Environmental Protection and Enhancement Act	Governs environmental regulatory offences	Includes pollution, illegal dumping, or contravention of environmental regulations.
Gaming, Liquor and Cannabis Legislation	Governs offences related to liquor, gaming, and cannabis	Includes selling to minors, illegal gambling, or unlicensed activities.
Occupational Health and Safety Act	Governs workplace safety offences	Employers or individuals can face fines or imprisonment for safety violations.

Departments of Justice play key roles in administering and enforcing the law, but their responsibilities differ based on jurisdiction.

Federal Department of Justice. Department of Justice Canada (Justice Canada)

Primary Roles and Responsibilities:

1. Drafting Legislation – Develops and reviews federal laws, including criminal law (e.g., Criminal Code, CDSA, YCJA).
2. Legal Advice to Government – Provides legal counsel to federal ministers, agencies, and departments.

3. Prosecution of Federal Offences – Handles cases that involve federal statutes or occur on federal lands.
4. Policy Development – Recommends legal policy reforms, including criminal law reform, human rights legislation, and justice initiatives.
5. Legal Representation – Represents the federal government in courts, including the Supreme Court of Canada.
6. Administration of Federal Programs – Supports legal aid, indigenous justice initiatives, and national law enforcement policy coordination.

Provincial Department of Justice. Alberta Justice & Solicitor General

Primary Roles and Responsibilities:

1. Administration of Justice at the Provincial Level – Manages provincial courts, prosecutions, and correctional services for offences under provincial law.
2. Prosecution of Provincial Offences – Handles quasi-criminal offences under provincial statutes, including traffic, environmental, and occupational health and safety laws.
3. Court Services – Provides infrastructure, staffing, and administration for Provincial Court, Court of King’s Bench, and appellate courts.
4. Legal Advice to Provincial Government – Advises ministers and agencies on legal matters, including contracts, policies, and legislation.
5. Correctional and Rehabilitation Programs – Manages provincial jails, probation services, and programs for rehabilitation and reintegration.
6. Support for Victims of Crime – Provides victim services, restitution programs, and information on legal processes.

In Alberta, the court system is structured in a hierarchy, with each court having specific jurisdiction, the types of cases it can hear and the powers it holds.

Provincial Court of Alberta: Handles the majority of legal matters in the province; first level of the court system. Provincial Court does not conduct trials for serious indictable offences; these go to the Court of King’s Bench. Jurisdiction:

- **Criminal Matters:**
 - Summary offences (minor offences under the Criminal Code or provincial statutes)
 - Some hybrid offences (less serious indictable offences if the Crown elects summary trial)
 - Youth criminal matters under the Youth Criminal Justice Act (12–17 years)
- **Civil Matters:**
 - Small claims (claims up to \$50,000)
- **Family Matters:**
 - Child protection, custody, maintenance, and guardianship issues
- **Traffic & Regulatory Offences:**
 - Provincial offences, municipal by-law violations
- **Other:**
 - Bail hearings, preliminary inquiries for indictable offences

Court of King's Bench of Alberta: Superior trial court with broad jurisdiction, including serious criminal matters. Court of King's Bench handles serious criminal offences and high-value civil claims, acting as a superior trial court. Jurisdiction:

- **Criminal Matters:**
 - Indictable offences (serious crimes like murder, robbery, sexual assault)
 - Appeals from Provincial Court in criminal matters
- **Civil Matters:**
 - Claims over \$50,000
 - Judicial review of administrative decisions
- **Family Law:**
 - Divorce, property division, adoption
- **Other:**
 - Trials by judge or judge and jury for serious criminal cases
 - Judicial review of lower court decisions

Court of Appeal of Alberta: Highest court in Alberta before the Supreme Court of Canada; reviews decisions of lower courts. Court of Appeal does not conduct trials; it reviews legal correctness of prior decisions. Jurisdiction:

- Appeals from Court of King's Bench and Provincial Court
- Reviews both criminal and civil cases
- Ensures legal errors or procedural errors can be corrected
- Can uphold, overturn, or modify lower court decisions

Supreme Court of Canada: Highest appellate court in Canada; ultimate authority on Canadian law. Supreme Court cases usually involve constitutional issues, interpretation of federal law, or significant legal principles. Jurisdiction:

- Hears appeals from the Court of Appeal of Alberta
- Only hears cases of national importance or major legal significance
- Decisions are binding on all lower courts in Alberta and across Canada

Appeal courts in Canada, including the **Court of Appeal of Alberta**, have the power to review decisions made by lower courts to ensure that the law was applied correctly and that proper procedures were followed. They do not retry cases or hear new evidence; instead, they examine the record of the original trial to determine whether legal errors occurred that could have affected the outcome.

Supreme Court of Canada serves as the highest appellate court in the country and has the authority to hear appeals from provincial and federal appellate courts. Its role is to resolve cases of national importance, interpret federal and constitutional law, and establish binding legal precedent for all lower courts in Canada. Together, appeal courts and the Supreme Court maintain consistency, fairness, and integrity within the Canadian justice system.

In Criminal law a crime consists of two essential elements that must be proven for a conviction: **actus reus** and **mens rea**. Additional elements such as causation may also be considered.

Actus Reus (The Guilty Act): The physical component of a crime; the voluntary action, omission, or conduct that constitutes the criminal offence.

- Must be a **voluntary act or omission** that breaches the law.
- Includes acts such as assault, theft, or driving while impaired.
- In some crimes, **omission** (failing to act when there is a legal duty) can also constitute actus reus.

Mens Rea (The Guilty Mind): The mental component of a crime; the intention or knowledge of wrongdoing.

- Shows that the accused had criminal intent, recklessness, or knowledge that their conduct was wrongful.
- Different levels of mens rea include:
 - **Intention:** Deliberate purpose to commit the crime.
 - **Knowledge:** Awareness that one's actions are likely to cause harm.
 - **Recklessness:** Conscious disregard for a substantial risk.
 - **Criminal negligence:** Failure to meet a reasonable standard of care that results in harm.

Additional Elements (Context-Specific)

- **Causation:** The actus reus must cause the prohibited consequence (e.g., in homicide, the action must cause death).
- **Concurrence:** Actus reus and mens rea must occur together, the guilty mind must coincide with the guilty act.

Offences are classified based on their seriousness and procedure, which determines how they are prosecuted and what penalties apply. The three main types are summary offences, hybrid offences, and indictable offences.

Summary Offences (Including Provincial): Minor offences, often less serious in nature. Typically handled in Provincial Court. Tried quickly and informally. No preliminary inquiry is required.

- Penalties: Maximum 6 months imprisonment and/or \$5,000 fine (may vary for provincial offences).
- Examples: Minor assault, causing a disturbance, provincial traffic violations.

Hybrid Offences (Dual Procedure): Offences that can be prosecuted either summarily or by indictment at the discretion of the Crown prosecutor. Depending on prosecution, tried in Provincial Court (summary) or Court of King's Bench (indictable). Crown decides whether to proceed summarily (for lighter penalty) or by indictment (for more serious penalty).

- Penalties: Range from summary-level fines or jail to indictable-level imprisonment.
- Examples: Assault causing bodily harm, theft under \$5,000, mischief.

Indictable Offences: Serious criminal offences with the most severe penalties. Tried in Court of King's Bench, often before a judge or jury. Includes preliminary inquiry (to assess evidence). Trial may be judge-alone or judge-and-jury.

- Penalties: Can include long-term imprisonment (up to life), substantial fines, or other severe consequences.
- Examples: Murder, sexual assault, robbery, aggravated assault.

Powers of the police are defined by the Criminal Code of Canada, the Charter of Rights and Freedoms, and provincial statutes. Police have the authority to enforce the law, maintain public safety, and investigate offences, but their powers are limited by legal safeguards to protect individual rights.

Arrest: Taking a person into custody because they are suspected of committing an offence.

- Powers and Requirements:
 - Police can arrest with or without a warrant depending on the circumstances.
 - Must have reasonable grounds to believe an offence has been committed.
 - Must inform the individual of the reason for the arrest.

Questioning (Interrogation): Police may question individuals to gather information about an offence.

- Rules and Limits:
 - Individuals have the right to remain silent (Charter Section 7 & 11(c)).
 - Must be informed of the right to counsel (Charter Section 10(b)).
 - Police cannot use threats, deception, or coercion to obtain a statement.

Search and Seizure: Police may search a person, place, or thing to find evidence of a crime.

- Limits and Safeguards:
 - Must have reasonable grounds to believe evidence of an offence is present.
 - For most searches, a warrant issued by a judge is required.
 - Some warrantless searches are allowed (e.g., during arrest or for public safety).
 - Evidence obtained unlawfully may be excluded in court (Charter Section 24(2)).

Custody (Detention): Holding a person in police custody for investigation or until they are charged. Ensure the individual does not flee, destroy evidence, or pose a threat to public safety.

- Rights of Individuals in Custody:
 - Right to be informed of the reason for detention.
 - Right to legal counsel.
 - Right to be free from cruel or unusual treatment (Charter Section 12).

Release: Police must release a person if detention is no longer justified or conditions for release are met.

- Mechanisms:
 - Release on Undertaking or Promise to Appear: Individual agrees to appear in court on a certain date.
 - Bail/Detention Hearing: If the offence is serious, police must bring the individual before a judge to decide on bail.

The **Charter of Rights and Freedoms** guarantee specific rights to individuals who are arrested or detained to protect them from abuse of state power and to ensure a fair criminal process. These rights are primarily found in Sections 7, 9, 10, and 11 of the Charter.

Right to Be Informed of the Reason for Arrest or Detention (Section 10(a)): Individuals must be immediately informed of the reason they are being arrested or detained. This ensures the accused understands the nature of the alleged offence.

Right to Legal Counsel (Section 10(b)): Individuals have the right to consult a lawyer without delay and to have a lawyer present during questioning. Police must inform the person of this right and allow access to legal advice.

Right to Remain Silent (Section 7 & Common Law): Individuals are protected from self-incrimination. They may refuse to answer questions until they have consulted legal counsel.

Right to Habeas Corpus (Section 7 & Section 24): Individuals cannot be detained arbitrarily. They may challenge unlawful detention in court to secure release.

Right to Be Free from Unreasonable Search and Seizure (Section 8): Individuals have the right to privacy in their person, home, and possessions. Evidence obtained through illegal search or seizure may be excluded from court.

Right to Be Tried Within a Reasonable Time (Section 11(b)) Individuals charged with an offence are entitled to a speedy trial. Prevents indefinite detention without resolution.

Right to Fair Trial and Due Process (Sections 11(d)–(f)): Right to presumption of innocence until proven guilty. Right to confront witnesses and obtain a fair hearing. Right to protection against cruel or unusual punishment (Section 12).

Bail hearing is a court proceeding held shortly after an individual is arrested to determine whether they should be released from custody pending trial and under what conditions, such as reporting to a bail supervisor or surrendering travel documents. Its purpose is to balance the presumption of innocence with public safety and the risk that the accused may flee, re-offend, or interfere with the administration of justice.

Preliminary hearing is a procedural step in the criminal process for serious indictable offences, where a Provincial Court judge reviews the evidence presented by the Crown to determine whether there is sufficient evidence to proceed to trial. It acts as a safeguard to prevent unnecessary trials and ensures that the accused's case is supported by credible evidence before it reaches the superior court.

The Crown counsel (prosecutor) represents the public interest and the state in prosecuting criminal offences. Their role is to present evidence, question witnesses, and make legal arguments to prove the accused's guilt beyond a reasonable doubt, while also ensuring that the trial is conducted fairly and in accordance with the law.

The **defence counsel** represents the accused individual, protecting their legal rights and challenging the Crown's evidence. The defence may present evidence, cross-examine witnesses, and make legal arguments to create reasonable doubt or assert applicable defences.

A criminal trial can be conducted either as a **trial by judge alone** or as a **trial by judge and jury**, depending on the offence and the accused's choice.

- **Trial by judge alone**, the judge serves as both the arbiter of law and the finder of fact, deciding guilt and delivering the sentence. This option is often chosen for complex cases involving technical or legal issues where a jury may find the law difficult to navigate.
- **Trial by judge and jury**, the judge oversees legal procedures and instructs the jury on the law, while the jury of citizens determines the facts and delivers a verdict of guilty or not guilty. This type of trial is typically reserved for more serious indictable offences and emphasizes public participation in the justice system.

Jury selection process is designed to ensure that juries are composed of impartial citizens who can fairly decide a case. Potential jurors are randomly selected from the provincial or territorial voters' list, health card registries, or other government databases. Once summoned, individuals undergo a process called *voir dire*, where the Crown, defence, and judge can question jurors to determine if they have bias, conflicts of interest, or inability to serve impartially.

Both the Crown and defence are allowed a limited number of challenges to exclude certain jurors, either for cause (specific reason) or peremptory challenges (no reason needed, where allowed). From this pool, typically 12 jurors are selected for criminal trials, with additional alternates in case a juror cannot continue. The final jury is intended to represent a cross-section of the community and decide the facts of the case independently of the judge.

The **onus** and **burden of proof** define who must prove a case and to what standard.

- The **onus** refers to the responsibility of a party to establish a fact or issue in a legal proceeding.
- **Burden of proof** specifies the level of certainty required to meet that responsibility.
- In criminal trials, the **Crown (prosecution) bears the burden of proof**, meaning it must prove the accused's guilt **beyond a reasonable doubt**, the highest standard in law, reflecting the seriousness of depriving someone of liberty.

The accused generally has no obligation to prove innocence, although they may bear the burden of establishing certain defences or exceptions on a **balance of probabilities** basis (e.g., self-defence). This system ensures the presumption of innocence is maintained and protects individuals from wrongful conviction.

Admissibility and reliability of evidence are central to ensuring a fair trial.

- **Hearsay**: A statement made outside of court that is offered to prove the truth of its content. Hearsay is generally inadmissible because the original speaker cannot be cross-examined, which may affect reliability. Exceptions: Certain circumstances, such as dying declarations or statements against interest, may allow hearsay evidence.

- **Prior Bad Acts / Character Evidence:** Evidence of the accused's past wrongdoings or criminal history. Such evidence can prejudice the jury by suggesting the accused has a criminal disposition. Admissibility: Only allowed if it is directly relevant to an issue in the case (e.g., intent, motive, or pattern of behaviour).
- **Expert Evidence:** Testimony from qualified experts to assist the court in understanding technical or scientific matters. The expert's qualifications, methodology, and relevance must be established to ensure reliability.
- **Physical and Documentary Evidence:** Tangible items (weapons, clothing, DNA) or documents (contracts, records) presented at trial. Must be collected, preserved, and presented lawfully to avoid challenges of tampering or contamination.
- **Charter Considerations:** Evidence obtained in violation of the Charter of Rights and Freedoms (e.g., illegal search and seizure) may be excluded under Section 24(2) if admitting it would bring the administration of justice into disrepute.

Defences. An accused may raise defences to challenge criminal liability, justify their actions, or reduce culpability. Defences can be divided into several categories:

Complete Defences. If successful, result in a not guilty verdict.

- **Self-Defence:** Using reasonable force to protect oneself or others from imminent harm. Force must be proportional to the threat. Cannot be used to retaliate after the fact.
- **Not Criminally Responsible (NCR) – Mental Disorder:** The accused was suffering from a mental disorder that prevented understanding the nature or wrongfulness of their act. Determined through psychiatric evaluation. May result in treatment orders rather than traditional punishment.
- **Automatism:** The accused's actions were involuntary due to a physical condition (e.g., seizure, sleepwalking). Can negate actus reus. Must be proven on a balance of probabilities.
- **Duress:** Committing an offence because of a threat of immediate harm. Threat must be serious and imminent. No safe avenue of escape.

Partial or Mitigating Defences. These do not result in acquittal but may reduce the severity of charges or sentencing.

- **Provocation:** A sudden loss of self-control in response to provocative conduct by another. May reduce murder to manslaughter.
- **Intoxication:** Voluntary or involuntary impairment of mental faculties. Rarely a complete defence; may affect specific intent crimes.

Legal Justifications or Excuses

- **Consent:** The alleged victim agreed to the conduct. Consent is not valid for serious crimes like sexual assault involving minors or aggravated assault.
- **Mistake of Fact:** Honest belief in a set of facts that, if true, would make the act non-criminal. Must be honest and reasonable.

Procedural Defences

- **Charter Violations:** Accused argues that evidence was obtained illegally (e.g., unlawful search, coercion). Evidence may be excluded; may lead to acquittal if the case is undermined.

Alternatives to Courts for Dispute Resolution

Criminal justice system includes several alternatives to traditional court proceedings that focus on rehabilitation, accountability, and repairing harm rather than punishment. These alternatives are commonly used for youth, first-time offenders, and less serious offences.

Youth Criminal Justice Act (YCJA) Measures

- Emphasize rehabilitation and reintegration of young offenders.
- Encourage the use of warnings, cautions, referrals to community programs, and conferences instead of formal court proceedings.
- Aim to hold youth accountable in a manner appropriate to their age and maturity.

Extrajudicial Measures and Sanctions

- Applied primarily to youth but also available to adults in some circumstances.
- Include community service, apology letters, counselling, or educational programs.
- Used when court proceedings are not necessary to protect the public.

Aboriginal or Indigenous Justice Programs and Councils

- Incorporate traditional Indigenous values and practices, such as sentencing circles or community councils.
- Focus on restorative justice, healing, and reconciliation.
- Often used where both the victim and offender consent to participation.

Adult Alternative Measures (Diversion Programs)

- Available for adults charged with minor or first-time offences.
- May include restitution, community service, counselling, or treatment programs.
- Successful completion usually results in charges being withdrawn or stayed.

Restorative Justice Programs

- Bring together the offender, victim, and community to discuss harm caused and agree on steps to repair it.
- Emphasize accountability, victim involvement, and prevention of reoffending.

Sentencing. Courts may impose a range of sentences depending on the seriousness of the offence, the offender's background, and the goals of sentencing.

- Sentences can include **absolute or conditional discharges**, where the offender is found guilty but no conviction is registered if conditions are met; fines, requiring payment to the court; and probation, which allows the offender to remain in the community under court-ordered conditions.
- More serious offences may result in **custodial sentences**, served in a provincial jail (sentences under two years) or a federal penitentiary (sentences of two years or more).

- Courts may also order **conditional sentences** (house arrest with strict conditions), community service, restitution to victims, or suspended sentences combined with probation.

Mitigating and aggravating factors are circumstances that influence the severity of a sentence by helping the judge determine the offender's level of responsibility and the appropriate punishment.

Mitigating factors reduce the severity of a sentence and may include the offender's lack of a prior criminal record, expressions of remorse, cooperation with police, youth or advanced age, mental health issues, or evidence of rehabilitation.

Aggravating factors, increase the severity of a sentence and may include the use of violence or a weapon, targeting a vulnerable victim, committing the offence while on probation or parole, hate motivation, or a significant prior criminal record. The presence of aggravating factors can lead to longer jail terms, stricter probation conditions, or higher fines, while mitigating factors may result in reduced penalties, alternative sentences, or greater emphasis on rehabilitation.

Federal penitentiaries and provincial jails serve different roles within the correctional system, primarily based on the length of an offender's sentence and the type of custody required. **Federal penitentiaries**, operated by the Correctional Service of Canada, house offenders sentenced to **two years or more** and focus on long-term incarceration, rehabilitation programs, education, treatment, and preparation for eventual reintegration into society.

Provincial jails, operated by provincial governments, hold offenders sentenced to **less than two years**, individuals awaiting trial, those in custody for bail hearings, and offenders serving short-term sentences. Provincial facilities tend to emphasize short-term detention and supervision, while federal institutions place greater emphasis on structured rehabilitation and gradual conditional release.

Temporary absence programs, parole, and statutory release are all forms of conditional release, but they differ in purpose, timing, and level of supervision.

- A **temporary absence (TA)** program allows an offender to leave a correctional facility for a short, specific period, for example, to attend treatment, education, employment, medical appointments, or family matters—while still serving their sentence and remaining under strict supervision.
- **Parole** is a conditional release that allows an offender to serve the remainder of their sentence in the community under supervision after demonstrating rehabilitation; it may be day parole (returning to a facility at night) or full parole (living in the community).
- **Statutory release** occurs automatically after an offender has served two-thirds of their sentence, unless the National Parole Board determines the offender poses an undue risk to public safety; it is not earned in the same way as parole but still includes supervision and conditions.

The granting of **conditional release** is determined by several key factors, including the risk to public safety, the seriousness of the offence, the offender's behaviour while incarcerated,

participation in rehabilitation programs, likelihood of reoffending, availability of community supports, and any victim safety concerns.

National Parole Board of Canada, now known as the **Parole Board of Canada**, is an independent administrative tribunal responsible for making decisions about the conditional release of federal offenders. Its role is to assess whether an offender can be safely released into the community without posing an undue risk to public safety.

The Board reviews information such as the seriousness of the offence, the offender's criminal history, behaviour while incarcerated, participation in rehabilitation programs, and victim impact statements. It has the authority to grant, deny, cancel, or revoke parole, impose release conditions, and make decisions regarding statutory release and record suspensions.

Youth are treated differently than adults in the criminal justice system because of their stage of development, capacity for change, and the long-term impact that criminal convictions can have on their future. Research and legal principles recognize that young people are generally less mature, more susceptible to peer influence, and less able to fully understand the consequences of their actions than adults. As a result, the justice system places greater emphasis on rehabilitation, reintegration, and accountability in a developmentally appropriate manner, rather than punishment alone. Treating youth differently is intended to reduce reoffending and support positive development while still holding young people responsible for their actions.

The primary criminal legislation that applies to youth in Canada is the **Youth Criminal Justice Act (YCJA)**. The YCJA governs how individuals aged 12 to 17 are dealt with when charged with a criminal offence and sets out principles such as the use of extrajudicial measures, protection of privacy, reduced sentencing options, and alternatives to custody. While youth offences are based on the Criminal Code of Canada, the YCJA determines the procedures, rights, and sentencing principles that apply specifically to young persons.

Courts recognize **special considerations and alternatives** to traditional sentencing in order to promote rehabilitation, accountability, and reintegration.

- Special considerations include the offender's age, level of maturity, mental health, cultural background, prior criminal record, and the circumstances surrounding the offence.
- For youth, the law places emphasis on avoiding custody where possible and using responses that are proportionate to both the offence and the young person's degree of responsibility.
- Courts also consider the long-term impact of a criminal record and the offender's potential for rehabilitation.

Alternatives to sentencing may include extrajudicial measures, diversion programs, restorative justice approaches, community service, probation with treatment or counselling conditions, restitution to victims, and participation in education or skill-building programs. In Indigenous contexts, alternatives such as sentencing circles and community-based justice programs may be used. These approaches aim to address the underlying causes of offending behaviour, repair

harm to victims and the community, and reduce the likelihood of reoffending while maintaining public safety.

After-care Agencies: Support reintegration: John Howard Society, Elizabeth Fry Society.

Challenging Issues: Prison reform, parole and supervision, plea bargaining, probation conditions, victims' rights, wrongful convictions, organized crime, young offenders, legal aid.

Careers in Criminal Justice. Law enforcement careers include police officers, RCMP members, and sheriffs, who investigate crimes, enforce laws, and maintain public order. Legal careers include Crown prosecutors, defence lawyers, judges, and legal aid lawyers, who interpret and apply the law while ensuring fairness and due process. Court and correctional careers include probation officers, parole officers, correctional officers, and court clerks, who supervise offenders, manage institutions, and support court operations.

Additional careers focus on support, prevention, and rehabilitation, such as victim services workers, social workers, youth workers, forensic psychologists, and policy analysts. There are also specialized roles such as forensic investigators, crime analysts, and criminal justice researchers.

Required Assignment

/100 Marks

Final Summative Assessment (100 Marks Total)

1. *Explain the legal definition of a child, youth and adult (15 marks)*
2. *Differentiate between summary (including provincial), hybrid and indictable offences and identify the elements of a crime (20 marks)*
3. *Describe the powers of the police with respect to arrest, questioning, search and seizure, custody and release (15 marks)*
4. *Outline the rights of the arrested individual as outlined in the Charter of Rights and Freedoms (15 marks)*
5. *Explain the various types of sentences and identify the mitigating and/or aggravating factors and their effects on sentencing (15 marks)*
6. *Differentiate between how adults and youth are treated within the criminal justice system (20 marks)*

Students may choose from the following: Written report, Slideshow presentation, Video or documentary-style submission, Podcast or recorded oral presentation, Visual legal timeline with written explanation

LGS3910: LGS PROJECT D

Description: Students develop project design and management skills to extend and enhance competencies and skills in other CTS courses through contexts that are personally relevant.

This module that allows students to explore how laws in Alberta and Canada are created, challenged, and changed. Students will also investigate careers within the criminal justice system and related post-secondary pathways available in the Edmonton region.

How Laws Change in Alberta and Canada

Why Laws Change. Laws are not static. They evolve to reflect:

- Changing social values
- Technological advancements
- Court decisions
- Public safety concerns
- Advocacy and activism

Examples include: Cannabis legalization, Same-sex marriage, Youth Criminal Justice Act reforms, Indigenous rights and reconciliation

Methods Used to Change the Law

Legislative Change (Statute Law) Laws created or amended by elected governments.

Process (Federal):

1. Bill introduced in House of Commons
2. First, Second, and Third Readings
3. Committee review
4. Senate approval
5. Royal Assent

Examples include: Criminal Code amendments, Provincial traffic laws, Education Act changes

Judicial Change (Court Decisions) Laws change through court interpretations and rulings.

- **Precedent:** Lower courts follow decisions of higher courts
- **Charter challenges:** Courts may strike down laws that violate the Charter of Rights and Freedoms

Example Case: *R. v. Morgentaler* (abortion laws)

Charter of Rights and Freedoms

The Charter protects fundamental freedoms and can be used to:

- Challenge unfair laws
- Force governments to revise legislation

Key Sections:

- Section 2 – Fundamental Freedoms
- Section 7 – Life, liberty, and security of the person
- Section 15 – Equality rights
- Section 1 – Reasonable limits clause

Public Pressure and Advocacy. Laws can change due to: Public protests, Advocacy groups, Media attention & Petitions and lobbying

Examples:

- Truth and Reconciliation Calls to Action
- Victims' rights legislation
- Environmental law reforms

Royal Commissions and Inquiries. Governments may establish commissions to:

- Investigate complex issues
- Make recommendations for law reform

Examples:

- Truth and Reconciliation Commission
- Alberta Public Inquiries

Careers in the Criminal Justice System

Law Enforcement:

Police Officer (Municipal, RCMP), Sheriff, Peace Officer, Conservation Officer

Skills Required: Communication, Physical fitness, Ethical decision-making, Conflict resolution

Legal Professions:

Lawyer (Crown Prosecutor, Defence Counsel), Judge, Paralegal, Legal Assistant

Education: Undergraduate degree, Law school (JD), Articling and bar admission

Courts and Legal Administration:

Court Clerk, Court Reporter, Judicial Assistant

Corrections and Community Justice:

Correctional Officer, Probation Officer, Parole Officer, Youth Worker

Victim and Community Services:

- Victim Services Worker, Restorative Justice Facilitator, Community Outreach Worker

Post-Secondary Programs in the Edmonton Area

NorQuest College

- Justice Studies, Community Justice Worker, Law Clerk Diploma

MacEwan University

- Bachelor of Arts in Criminal Justice, Sociology / Political Science (pre-law pathways)

University of Alberta

- Bachelor of Arts (Criminology, Political Science), Juris Doctor 3-year undergraduate program (Law), Indigenous Studies and Law-related research

NAIT

- Paralegal Programs, Legal Administrative Assistant

When exploring education options, consider: Length of program, Admission requirements, Career goals, Hands-on learning opportunities, Transfer options

Required Assignment

/100 Marks

Final Summative Assessment (100 marks)

Law Change Investigation (40 marks)

- *Description of the law (past and present)*
- *Method of change (legislation, courts, Charter, advocacy)*
- *Impact on society*

Criminal Justice Careers Exploration (35 marks)

- *Description of two careers*
- *Required education and skills*

Post-Secondary Pathways (25 marks)

- *Description of one or more Edmonton-area programs*
- *Admission requirements*
- *Career connections*

Students may choose from the following: Written report, Slideshow presentation, Video or documentary-style submission, Podcast or recorded oral presentation, Visual legal timeline with written explanation

CTS Assessment Rubric

Knowledge & Understanding: Demonstrates understanding of concepts, terminology, and processes related to the module. Applies knowledge accurately in practical and theoretical tasks.

Skills & Application: Demonstrates technical skills and competencies required for the module. Applies skills effectively to complete tasks, projects, or problem-solving situations.

Communication & Professionalism: Communicates clearly (oral, written, or digital as appropriate). Demonstrates responsibility, organization, safety, and professional conduct in work.

Creativity & Initiative: Demonstrates innovation, problem-solving, and adaptability in approaching tasks. Shows initiative, independence, and perseverance in completing module outcomes.

1. Knowledge & Understanding

- Excellent (5): Demonstrates thorough and insightful understanding of concepts, terminology, and processes; consistently applies knowledge with accuracy and depth.
- Proficient (4): Demonstrates solid understanding of concepts and processes; applies knowledge accurately with minor errors.
- Acceptable (3): Demonstrates basic understanding of key concepts and processes; applies knowledge with occasional inaccuracies or gaps.
- Limited (1–2): Demonstrates minimal understanding of concepts and processes; frequent inaccuracies or lack of application.

2. Skills & Application

- Excellent (5): Consistently demonstrates strong technical skills; work is accurate, efficient, and exceeds module expectations.
- Proficient (4): Demonstrates competent technical skills; work is generally accurate and meets module expectations.
- Acceptable (3): Demonstrates developing technical skills; work is partially accurate and inconsistently meets expectations.
- Limited (1–2): Demonstrates limited technical skills; work is incomplete, inaccurate, or rarely meets expectations.

3. Communication & Professionalism

- Excellent (5): Consistently communicates clearly and effectively in multiple formats; demonstrates professionalism, organization, and responsibility at all times.

- Proficient (4): Communicates effectively in most situations; generally demonstrates professionalism and responsibility.
- Acceptable (3): Communicates ideas with some clarity; professionalism and responsibility are inconsistent.
- Limited (1–2): Communication is unclear or incomplete; demonstrates limited professionalism or responsibility.

4. Creativity & Initiative

- Excellent (5): Consistently demonstrates innovation, problem-solving, and independence; takes initiative to extend learning beyond expectations.
- Proficient (4): Demonstrates creativity and initiative; solves problems with some support and extends learning at times.
- Acceptable (3): Demonstrates some creativity and initiative; relies on support to solve problems and meet outcomes.
- Limited (1–2): Demonstrates little creativity or initiative; rarely attempts problem-solving independently.

Assessment Total:	/20 points x5	/100 marks
Knowledge & Understanding	_____	
Skills & Application	_____	
Communication & Professionalism	_____	
Creativity & Initiative	_____	

Each category may be tailored to the specific context of the CTS course. This rubric provides a balanced approach to assess students' skills and competencies in a comprehensive manner.

Comments: